

24STCV21522 24STCV21522

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV21522

LANDRUS

CLARK vs SOHAIL ZAVERI, et al.

August

25, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT DOORDASH, INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE,
SUMMARY ADJUDICATION.

RULING:

The Court denies the Motion
for Summary Judgment and Alternative Motion for Summary Adjudication.

Plaintiff to give notice.

I.

BACKGROUND

On August 23, 2024, LANDRUS
CLARK (Plaintiff) filed a form Complaint against SOHAIL ZAVERI and DOORDASH,
INC. (Defendants), identifying a Cause of Action for Motor Vehicle.

Plaintiff alleges that Defendants'
negligence caused an accident at the intersection of La Brea Avenue, Stocker
Street and Overhill Drive, in Los Angeles.

On July 28, 2026, Plaintiff
filed the Motion for Leave to file the proposed form, First Amended Complaint
(FAC) that since has been filed on August 14, 2026, encompassing both vicarious
and direct liability. The FAC lists the Claims:

1.

Motor Vehicle Negligence; and

2.

General Negligence.

On May 18, 2026, DOORDASH,
INC. (Defendant) filed the Motion for Summary Judgment based on the Complaint,
and alternatively, Motion for Summary Adjudication based on the Eighteenth
Affirmative Defense in DoorDash's Answer asserting no vicarious liability for
an independent contractor.

II.

LEGAL STANDARD

"[O]n summary judgment, a
moving party need only show it is entitled to the benefit of a presumption
affecting the burden of producing evidence in order to shift the burden of

proof to the opposing party to show there are triable issues of fact.” (Alvarez v. Seaside Transportation Servs. LLC (2017) 13 Cal.App.5th 635, 644.) “A defendant moving for summary adjudication ‘must satisfy the initial burden of production and make a prima facie showing that “one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” ’ ” If the defendant carries this initial burden, the burden shifts to the plaintiff to show a triable issue of material fact exists.” (Bradsbery v. Vicar Operating, Inc. (2025) 110 Cal.App.5th 899, 907.)

Motions for summary

judgment or adjudication that are deficient as to evidence, or separate statements, will be denied notwithstanding any weak showing by the opposing party. (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337, superseded by statute on other grounds as stated in Certain Underwriters at Lloyd's of London v. Superior Court (1997) 56 Cal.App.4th 952, 957, fn.4.) All necessary evidence must be referenced in the moving party's separate statement in order to be considered. (Scripps Clinic v. Superior Court (2003) 108 Cal.App.4th 917, 928; Consumer Cause v. Smilecare (2001) 91 Cal.App.4th 454, 472; Gibbs v. Consolidated Services (2003) 111 Cal.App.4th 794, 797, fn. 3.)

“Evidence Code section

456 provides the trial court must indicate for the record if it denies a request for judicial notice.” (Aaronoff v. Martinez-Senftner (2006) 136 Cal.App.4th 910, 919 [“The record contains no indication the request for judicial notice was denied. We conclude the trial court took judicial notice of the requested matter, particularly in light of its decision.”].)

III.

PROCEDURAL ISSUES

A.

Initial Burden

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Scalf v. D.

B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) “A defendant is not entitled to summary judgment unless that moving party negates all theories of liability pleaded by the plaintiff.” (Juarez v. Boy Scouts of America (2000) 81 Cal.App.4th 377, 397, disapproved on other grounds by Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213.)

“[F]actual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them. In making this determination, courts look to whether the new factual issues present different theories of recovery or rest on a fundamentally different factual basis.” (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1257.)

An alleged statutory liability in the FAC includes the Motor Carriers of Property Permit Act (MCPPA). [“A]ll of the cases in which a nondelegable duty has been imposed on a carrier have involved a “for-hire” carrier....” (Hill Bros. Chem. Co. v. Superior Court (2004) 123 Cal.App.4th 1001, 1005, 1010 [citing Veh. Code, §§ 34600, 3460]). See also generally Cal. Civ. Prac. Torts § 28:2.)

Here, the Motion fails to address the entirety of the FAC, including direct liability and the MCPPA.

Further, the Order allowing leave to amend, entered August 14, 2026, permitted the entire FAC. Anything else does not constitute the Order. (See Reply, 1:23.) A judge's order made orally, but not filed in writing or entered in the minutes, is ineffective. (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 77-78 [“An oral . . . opinion by a trial judge, discussing and purporting to decide the issues, . . . is merely an informal statement....”]; In re Marriage of Drake (1997) 53 Cal.App.4th 1139, 1170; Ketscher v. Superior Court (1970) 9 Cal.App.3d 601, 604; Code Civ. Proc., § 1003.)

Additionally, the FAC was properly filed before this ruling, and not partially delayed until afterwards. Where parties opposing summary judgment seek to assert facts or theories not pled, they must move for leave to amend the pleadings before or at the

hearing on the motion. (Dang v. Smith (2010) 190 Cal.App.4th 646, 664 ["If a party seeks to avoid summary judgment by going outside the pleadings, it is incumbent upon him to move to amend in a timely fashion."]; Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1257 ["it is incumbent on the plaintiff to seek leave to amend the complaint either prior to the hearing on the motion for summary judgment, or at the hearing itself."]; Burkle v. Burkle (2006) 141 Cal.App.4th 1029, 1042, fn. 9; Leibert v. Transworld Sys. (1995) 32 Cal.App.4th 1693, 1699.)

B.

Summary Adjudication Notice

A court cannot adjudicate

any issue except those precisely stated in the notice. (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1546; Homestead Savings v. Superior Court (1986) 179 Cal.App.3d 494, 498; Maryland Cas. Co. v. Reeder (1990) 221 Cal.App.3d 961, 974, n.3; Hawkins v. Wilton (2006) 144 Cal.App.4th 936, 949; Sequoia Ins. Co. v. Superior Court (1993) 13 Cal.App.4th 1472, 1478 [notice requesting summary adjudication as to listed causes of action is sufficient]; Cal. Rules of Court, rule 3.1350(b) [issues must be repeated verbatim in separate statement].)

"[T]he code does not employ the term 'partial summary judgment,' presumably because it is a misnomer since no judgment is entered in connection with that procedure of granting summary adjudication of issues." (City of Santee v. Superior Court (1991) 228 Cal.App.3d 713, 720, fn.5.)

Here, the Notice of

Motion only includes a request to summarily adjudicate the Eighteenth Affirmative Defense focusing upon independent contractor law but not encompassing newly added allegations in the FAC. Additionally, the Notice lacks any statement of an issue to the effect that Plaintiff cannot establish an element of the claim of negligent entrustment. Furthermore, the Court is not procedurally authorized to partially grant a Motion for Summary Judgment.

IV.

MERITS ANALYSIS

Defendant essentially

asserts that Plaintiff's vicarious liability claim fails because the driver was not an agent or employee of Defendant, where it satisfied statutory and contractual aspects to create an independent contractor status in accordance with Proposition 22. Defendant adds that it did not own the subject vehicle as would be required for Negligent Entrustment.

Plaintiff generally responds

that Proposition 22 does not encompass liability for negligent driving, and instead common law factors apply for ascertaining independent contractor status, which involve triable issues of material fact. And as for Negligent Entrustment based on Defendant's not owning the subject vehicle, Plaintiff diverts attention to other factors for vicarious liability instead. (See Opposition, 22:6-12.)

A. Proposition
and Legislative Interpretation

Voter initiatives are

construed using the principles applicable to legislative interpretation. (Buckland v. Threshold Ent., Ltd. (2007) 155 Cal.App.4th 798, 814, fn.8, 817, disapproved on other grounds by Kwikset Corp.

v. Superior Court (2011) 51 Cal.4th 310, 337; Horwich v. Superior Court (1999) 21 Cal.4th 272, 276.) "In determining the purpose of an initiative measure, we consider the analysis and arguments contained in the official election materials submitted to the voters." (Arias v. Superior Court

(2009) 46 Cal.4th 969, 979.) As to interpreting voter initiatives: "If the language is unambiguous, there is no need for further construction. If, however, the language is susceptible of more than one reasonable meaning, we may consider the ballot summaries and arguments to determine how the voters understood the ballot measure and what they intended in enacting it." (In re Tobacco II Cases (2009) 46 Cal.4th 298, 315.)

Business and Professions

Code section 7451, enacted via Proposition 22, provides that app-based drivers are independent contractors, if four specified conditions are satisfied, which are:

(a)

The network company does not unilaterally prescribe specific dates, times of day, or a minimum number of hours during which the app-based driver must be

logged into the network company's online-enabled application or platform.

(b)

The network company does not require the app-based driver to accept any specific rideshare service or delivery service request as a condition of maintaining access to the network company's online-enabled application or platform.

(c)

The network company does not restrict the app-based driver from performing rideshare services or delivery services through other network companies except during engaged time.

(d)

The network company does not restrict the app-based driver from working in any other lawful occupation or business.

(Bus. & Prof. Code, §
7451, subds. (a)-(d).)

The intent behind the

Proposition has been circumscribed in scope. "Proposition 22 states that its purposes are to 'protect the basic legal right of Californians to choose to work as independent contractors with rideshare and delivery network companies,' 'protect the individual right of every app-based rideshare and delivery driver to have the flexibility to set their own hours for when, where, and how they work,' and 'require rideshare and delivery network companies to offer new protections and benefits for app-based rideshare and delivery drivers, including minimum compensation levels, insurance to cover on-the-job injuries, automobile accident insurance, health care subsidies for qualifying drivers, protection against harassment and discrimination, and mandatory contractual rights and appeal processes.' " (Castellanos v. State of California (2024) 16 Cal.5th 588, 598.)

"California voters passed

Proposition 22, otherwise known as the Protect App-Based Drivers and Services Act, which enacted sections 7448 through 7467 of the Business and Professions Code. The purpose of the legislation was '[t]o protect the basic legal right of Californians to choose to work as independent contractors with rideshare and delivery network companies throughout the state' (Bus. & Prof. Code, §

7450, subd. (a)), '[t]o require rideshare and delivery network companies to offer new protections and benefits for app-based rideshare and delivery drivers' (id., subd. (c)), and '[t]o improve public safety by requiring criminal background checks, driver safety training, and other safety provisions to help ensure app-based rideshare and delivery drivers do not pose a threat to customers or the public' (id., subd. (d))." (Div. of Occupational Safety & Health v. Uber Techs., Inc. (2026) 121 Cal.App.5th 213, 222-223.)

Given such expressed voter intent, and limited case law in the area, this Court concludes that Proposition 22 does not encompass tort claims such as those involved in this case, but instead addresses other factors, like driver working conditions and public safety via background checks and training.

B. Common

Law Independent Contractor Factors

As for applicable common law: Generally, the "hiring entity's right to control necessary work details" is the most significant consideration for classifying employees verses independent contractors, followed by some secondary factors. (Becerra v. McClatchy Co. (2021) 69 Cal.App.5th 913, 932.) " 'The determination of employee or independent-contractor status is one of fact if dependent upon the resolution of disputed evidence or inferences.'... The question is one of law if the evidence is undisputed." (Bacoka v. Best Buy Stores, L.P. (2021) 71 Cal.App.5th 126, 134.) "Compared to the six-factor, fact-bound Borello test for independent contractor status—which can be very difficult for plaintiffs to meet at an early stage of litigation, short of a full-blown trial—the Dynamex court 'create[d] a simpler, clearer test for determining whether the worker is an employee or an independent contractor,' one that 'presumes a worker hired by an entity is an employee and places the burden on the hirer to establish that the worker is an independent contractor.' " (People v. Uber Techs., Inc. (2020) 56 Cal.App.5th 266, 301–302.)

Here, Defendant's

Separate Statement fails to address the spectrum of common law factors, but instead focuses narrowly upon Proposition 22 factors.

Additionally, regarding

Defendant's contract designating Plaintiff as being an independent contractor,

it is not necessarily determinative here. Businesses cannot unilaterally determine a worker's status simply by entering into a contract that designates the worker as being an independent contractor. (*Dynamex Operations W. v. Superior Court* (2018) 4 Cal.5th 903, 962.)

Thus, the Court determines that Defendant has failed to shift the burden of proof to Plaintiff.

Alternatively, if the burden has shifted, the Court decides that Plaintiff supports some disputes, such as those related to Defendant's controlling of drivers. (See, e.g., Separate Statements, Fact numbers 1, and 5-7; Plaintiff's additional fact numbers 5 through 54; and proof referenced thereat.)

Therefore, applying common law, the Court denies the Motion and Alternative Motion, either because (1) the facts and proof referenced in the separate statement do not address all primary and secondary factors for ascertaining independent contractor status, or (2) the opposing evidence contains material proof indicating the driver's agency status.

V.

CONCLUSION

The Court overrules all of Defendant's evidentiary objections, filed August 14, 2026. Attorneys may authenticate deposition transcripts by identifying them in their declaration. (*Greenspan v. LADT, LLC* (2010) 191 Cal.App.4th 486, 523 [deposition excerpts may be authenticated by attorneys who took the depositions]; *Ambriz v. Kelegian* (2007) 146 Cal.App.4th 1519, 1527 ["attorney attested, under penalty of perjury, that the copies of the documents lodged constituted 'true and correct copies of what they purport to be.'"]; *Williams v. Saga Ent., Inc.* (1990) 225 Cal.App.3d 142, 149; *Barnick v. Longs Drug Stores, Inc.* (1988) 203 Cal.App.3d 377, 380, fn. 3 [attorney's declaration sufficient to authenticate deposition testimony, where counsel was present at the deposition].)

The Court overrules all of Plaintiff's evidentiary objections, filed August 5, 2026. The business records exception to the hearsay rule differs from authentication of

contracts or other writings that instead involve the “introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is.” (Vargas v. Gallizzi (2023) 96 Cal.App.5th 362, 371–372, fns. 5, 6.) There is no strict requirement as to how a party authenticates a writing including an electronic signature in contracting. (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 759.)

In conclusion, the Court denies
the Motion and Alternative Motion, for reasons set forth herein.